

Authority for Personal Data
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 The Minister of Agriculture, Nature and Food Quality
 P.O. Box 20401
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 Date
 December 19, 2023
 Our reference
 z2023-299154
 Your letter dated
 November 5, 2023
 Contact person
 Your reference
 WJZ / 38903278
 Subject
 Advice on decision regarding Animal Products

Dear Mr. Adema,

In a letter dated November 9, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft Decision amending the Decision on Animal Products in connection with further regulations concerning qualified persons (hereinafter: the draft). In this letter, advice was simultaneously requested regarding the intended amendment of the Regulation on Animal Products. The AP will provide separate advice on that matter.

Assessment of the personal data aspects of the draft gives the AP reason to make a remark.

Scope of the draft

Wild game that is shot for consumption is assessed by a 'qualified person' for risks to public health. The draft provides for a registration obligation for these qualified persons. The register will include their contact details, date of birth, and educational qualifications.¹ In the context of mutual recognition, the draft also grants the minister the authority to provide relevant data of qualified persons registered in the Netherlands to the authorities of Belgium and Luxembourg.² Finally, the draft stipulates that the minister and the Foundation for Hunting Education in the Netherlands (SJV) - the (only) organization responsible in the Netherlands for issuing certificates of competence relevant to this draft - can exchange relevant educational data as well as contact details and the date of birth of the qualified persons.³ The register is managed by the Netherlands Food and Consumer Product Safety Authority (NVWA). The NVWA also supervises the qualified persons.

Advice

The minister checks whether a qualified person has actually completed the required training or continuing education.⁴ This check takes place automatically as soon as the qualified person registers or reports data in the register. If a qualified person provides data for the register,⁵ certain data is automatically checked using the BSN via the BRP⁶ and by the SJV through a connection of the SJV's system with the register (to verify whether a qualified person has had the necessary training or continuing education). The data protection impact assessment notes that it may happen that a registration cannot take place. If that is the case, contact can be made with the NVWA.⁷ The failure to register occurs - apparently - without human intervention. According to the data protection impact assessment, there is no automated decision-making involved here because the registration as a

qualified person does not in itself have legal consequences; the registration does not determine whether someone is a qualified person.⁸

The AP first notes that if a registration cannot take place, the conclusion may be that a qualified person does not (fully) comply with the registration obligation imposed in the draft. The draft does not address the question of whether there are legal consequences associated with this. Moreover, the scope of the rules on automated decision-making (Article 22 GDPR) is not limited to decisions with legal consequences but also pertains to decisions that may significantly affect someone otherwise.⁹ The data protection impact assessment does not indicate that this has been taken into account, while the Explanatory Memorandum to the draft does not refer at all to Article 22 GDPR. In this context, it should be noted that the draft concerns data that may be relevant to the professional practice of a qualified person and that the information from the register is used by the NVWA for its supervisory and enforcement tasks.

The AP advises that the Explanatory Memorandum explicitly addresses the (possible) applicability of Article 22 GDPR and incorporates the above considerations.

1 Article 2.5a, first paragraph, introductory text, under a-f, of the draft.

2 Article 2.5a, fifth paragraph, of the draft.

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3 Article 2.5a, sixth paragraph, of the draft.

4 In practice, the NVWA does this by mandate.

5 This is done by logging in with DigiD.

6 The BSN is stored in the register to enable the qualified person to be located when they seek access to the register again after the initial registration. This is permitted under the General Act on the Provision of Citizen Service Numbers and the Basic Registration of Persons Act and the Authorization Decision for the Minister of Economic Affairs for the Netherlands Food and Consumer Product Safety Authority (Strct. 2018, 9541).

7 Data protection impact assessment, p. 13.

8 Data protection impact assessment, p. 13.

9 In this context, explicit reference is made to the so-called Schufa ruling of the Court of Justice of the European Union of December 7, 2023, C-634/21 (ECLI:EU:C:2023:957), paras. 45-50 and guidelines WP251 rev. 01, October 3, 2017, last amended February 6, 2018, p. 23.

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Workload AP

It is likely that the concept will require the AP to make (limited) additional efforts. This effort has not yet been accounted for in the financing of the AP. This will need to be addressed in consultation with the Minister for Legal Protection - who is responsible for the budget from which the AP is financed - prior to the entry into force. For this reason, a copy of this advice is being sent to the Minister for Legal Protection.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority Personal Data,

Aleid Wolfsen

Chairman